

- (a) boundary marks or fences be provided or renewed by a railway administration for a railway or any part thereof and for roads constructed in connection therewith ;
- (b) suitable gates, chains, bars, stiles or hand-rails be erected or renewed by railway administration at level crossings ;
- (c) persons be employed by a railway administration to open and shut gates, chains or bars.

Comments

Section 18 provides that the Central Government may require boundary marks or fences to be provided by a railway administration and further provides that suitable gates, chains, bars, etc. may be erected and renewed at level crossing or that persons be employed by a railway administration to open and close such gates, chains, or bars etc.

Obligation on railways to provided fencing, if absolute – There is no duty on the part of the railway administration to fence the Railway line so as to prevent children from getting over the railway tracks. It cannot be the connection that providing fencing to the railway quarters located in the precincts of the station would safeguard the children from going to the line. At any rate, in the present case, there is no evidence whatsoever that the railway quarters of the plaintiff's father was not provided with fencing. Even if such fencing is provided, the Railways cannot be blamed if children are allowed by the parents to go out of the fencing.

19. Over bridges and under bridges – (1) Where a railway administration has constructed lines of rails across a public road at the same level, the State Government or the local authority maintaining the road, may, at anytime, in the interest of public safety, require the railway administration to take the road either under or over the railway by means of a bridge or arch with convenient ascents and descents and other convenient approaches instead of crossing the road on the level, or to execute such other works as may in the circumstances of the case, appear to the State Government or the local authority maintaining the road to be best adapted fro removing or diminishing the danger arising from the level crossing.

(2) The railway administration may require the State Government or the local authority, as the case may be, as a condition of executing any work under sub-section (1), to undertake to pay the whole of the cost of the work and the expense of maintaining the work, to the railway administration or such proportion of the cost and expenses as the Central Government considers just as reasonable.

(3) In the case of any difference of opinion between the railway administration and the State Government or the local authority, as the case may be, over any of the matters mentioned in sub-section (1), it shall be referred to the Central Government. Whose decision thereon shall be final.

Comments

Section 19 provides for construction of over bridges and under bridges at a level crossing at the instance of the State Government or the local authority in the interest of the public safety.

Public Safety – There is no need to strictly construe the words “public safety” laid down in section.19 of the Indian Railways Act. A Level crossing is to be manned twenty-four hours by railway employee on duty at the gate. It has been submitted that since the railway administration has met fifty percent of the expenditure on the flyover it would be in the interest of public exchequer to so construct the flyover as to totally avoid placement on duty for twenty four hours of railway employees at the level crossing. It is with this view that sub-way is being provided and is being constructed and a wall is being constructed on both sides of the subway so as to prevent flow of traffic over the railway line and to obviate the need of level crossing gate on the railway line.

20. Power of Central Government to give directions for safety – Notwithstanding anything contained in any other law the Central Government may, if it is of the opinion that any work undertaken or may be undertaken, is likely to alter or impede the natural course of water flow or cause an increase in the volume of such flow endangering any cutting, embankment or other work on a railway, issue directions in writing to any person, officer or authority responsible for such work to close, regulate or prohibit that work.

CHAPTER V

Opening Of Railways

21. **Sanction of the Central Government to the opening of railway**
– No railway shall be opened for the public carriage of passengers until the government has, by order, sanctioned the opening thereof for the purpose.

Comments

Section 21 lays down that no railway shall be opened for the public carriage of passengers until the Central Government has sanctioned the opening thereof.